

language limiting arbitration to all disputes to the extent permitted by law.¹ As a result, the court intends to deny the motion to compel plaintiff to arbitrate causes of action nos. 1 through 7 and 9 and to deny the request to dismiss the class claims.

The First Amended Complaint also includes a PAGA cause of action. To the extent the agreement can implicitly be understood to waive a representative claim, the California Supreme Court has found that waivers of PAGA representative actions in employee arbitration agreements are unenforceable. (*Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 383-384, abrogated on other grounds in *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639.) However, the arbitration of the plaintiff's individual PAGA claim is allowed under California law and is consistent with the call of the arbitration agreement to arbitrate disputes to the extent permitted by law. (*Id.* at p. 662.) As such, the court intends to grant the motion to compel arbitration of plaintiff Vazquez's individual PAGA claim.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 6-3-26 .

(Judge's initials) (Date)

¹ Plaintiff additionally raised Labor Code section 229 as a defense to the arbitration of plaintiff's causes of action raising claims for unpaid wages and related derivative claims in the opposition to defendant's initial motion to compel arbitration. Under Labor Code section 229, "Actions to enforce the provisions of this article for the collection of due and unpaid wages claimed by an individual may be maintained without regard to the existence of any private agreement to arbitrate." (Lab. Code, § 229.) Although not discussed in the response brief filed for this hearing, section 229 would also support finding causes of action nos. 1 through 5 for unpaid wages, and the derivative claims in causes of action 6 and 9, not subject to arbitration pursuant to the agreement's limitation to claims permitted by law.

(35)

Tentative Ruling

Re: ***Doe v. Clovis Unified School District et al.***
Superior Court Case No. 22CECG03712

Hearing Date: June 4, 2026 (Dept. 403)

Motion: Motion for Summary Judgment

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 6-3-26
(Judge's initials) (Date)